

23SMCV02312 23SMCV02312

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-10

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The application is DENIED.

This is an application to advance the hearing date on an MSJ or continue the trial to allow the MSJ to be heard. The MSJ was filed on the very last possible day for a timely motion assuming personal service. Service was accomplished at 5:11 pm by leaving the papers in a "conspicuous" place at counsel's office. On statutory notice, that would lead to a hearing on October 30, 2026, assuming service is proper. The trial is 11/30/26, which means that Friday, October 30, 2026, is the last possible timely hearing date. The currently scheduled date is November 10, 2026—seven court days beyond minimum notice.

Code of Civil Procedure Section 1011 states that personal service on a party shall be made by "leaving the notice or other paper at the party's residence with some person 18 years of age or older." Plaintiff here is self-represented. The signed proof of service simply says that the documents were handed to a messenger. The declaration from the messenger is blank. However, a later proof of service was filed that was signed by the messenger. The fact that this document was filed after the moving papers is of no moment; the proof of service may be filed after the moving papers (and indeed, in most cases must be so filed). It states that the messenger attempted to serve plaintiff at 5:00 p.m. but the gate was closed. The messenger could hear activity inside and saw shadows, but no one came in or out or to the gate. The messenger waited for a few minutes and placed the documents in the mail box at 5:11 p.m. The declaration states that a photo is attached, but there is no photo. The

court will take the messenger's declaration as true. The question is whether leaving the documents in the mailbox counts as personal service under the Code of Civil Procedure. The court is not sure that it does.

That is the problem with waiting until literally the last hour to file and serve the papers. That was a risky game to play, and it might well be that the gamble did not pay off here. The court will hear a brief argument as to why defendant decided to wait until the last second and then file a motion that was apparently not timely served such that it could be heard within the statutory time frame.